

APPLICATION FOR PROCESSING EXPORT TRANSACTIONS

We (the "Customer") present the enclosed documents (the "Documents") for disposal in accordance with our instructions indicated below. Date:

Letter of Credit ("L/C") available with a bank other than CCB (Asia) ☐ Payment to us after receipt of funds from L/C issuing / nominated bank without your financing ☐ Checking documents required ☐ Checking documents not required ☐ Advance by your bank against the presented documents with recourse to us ☐ Advance by the nominated bank against the usance documents with recourse to us	L/C available with CCB (Asia) or any bank ☐ Negotiation / Purchase / Prepayment under the L/C ☐ with recourse to us ☐ without recourse to us* ☐ Negotiation / Purchase / Prepayment under the L/C after the L/C issuing bank has accepted the documents ☐ with recourse to us ☐ without recourse to us* ☐ Payment to us after receipt of funds from L/C issuing / confirming bank without your financing ☐ Checking documents required ☐ Checking documents not required	For Collection ☐ Financing under D/A or D/P with recourse to us ☐ Payment to us after receipt of D/A or D/P proceeds	Export invoice financing ☐ Advance against invoice with recourse to us ☐ Send the documents to the buyer in one lot via courier ☐ Do not send the documents to the buyer
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***Note:** All "without recourse" financing request is subject to the Without Recourse Export Bills Negotiation/Purchase Agreement. If the without recourse request is not accepted, the instruction will be deemed to be changed to Negotiation/Purchase/Prepayment under the L/C with recourse to the Customer.

Please send documents in one lot via courier service unless L/C states otherwise (for L/C only) or we state otherwise (for D/A or D/P or D/P with tenor only).

Collecting Bank (name and address) (for Collection):										Tenor	Currency and Amount		Drawer's Ref. No.
										L/C No.	Issuing Bank:		
Drawee (full name and address):										Drawer / Beneficiary (full name and address):			
										Contact person:			
										Tel No.:		Fax No.:	
Documents Submitted	Draft	Comm. Invoice	Cust. Invoice	Pkg. List	Wt. List	Cert. of Origin	Bene. Cert.	Ins. Policy	B/L or AWB	Other doc:	Other doc:	Other doc:	

For Back-to-Back L/C (if applicable)

A back-to-back L/C (no. _____) (the "Back-to-Back L/C") has been issued by you against the support of the L/C. You are irrevocably authorized (but not obliged) to utilize the documents presented under the Back-to-Back L/C for the drawing of the L/C irrespective of discrepancies or irregularities that may appear on the documents presented under the Back-to-Back L/C (all of which, if any, are hereby waived).

COLLECTION INSTRUCTION TO COLLECTING BANK : (Mark X)										Other instruction: (Mark X)			
☐	Release documents against ☐ payment / ☐ acceptance									☐	Use Forward Contract # _____		
☐	☐ Payment / ☐ Acceptance may be deferred until arrival of the carrying vessel									☐	Debit your bank charges to our account No. _____		
☐	Protest for ☐ non-payment / ☐ non-acceptance									Credit proceeds to our account in			
☐	Do not protest for ☐ non-payment / ☐ non-acceptance									☐	☐ HK\$ / ☐ US\$ No. _____		
☐	When accepted please advise due date by ☐ airmail / ☐ cable									☐	☐ Other Currency No. _____		
☐	If dishonored, please advise us immediately by ☐ airmail / ☐ cable giving reasons									☐	Send us your cashier's order / demand draft.		
☐	Collect charges outside Hong Kong from the drawee									☐	Deduct _____ for your I/B dept. Bill No. _____		
☐	Please ☐ waive ☐ do not waive collecting charges outside Hong Kong from the drawee									☐	If there are any queries please contact _____		
☐	Collect interest at _____ % p.a. from the drawee from to									at _____ Ext. _____ quoting our bill no(s).			
☐	Please ☐ waive ☐ do not waive collecting interest from drawee									☐	In respect of CFR, CPT, FOB or FCA shipment, it is certified that the ultimate buyer / drawee has effected insurance covering usual marine / air risks. We undertake to indemnify you and hold you harmless against all losses, costs, damages, expenses, claims and liabilities which you may suffer or incur as a result of any failure to effect such insurance.		
☐	Please advise payment by ☐ airmail / ☐ cable									☐	Deduct HKD _____ for Packing Loan No. _____		
☐	In case of need notify:									☐	Please specify:		
who will assist you to obtain acceptance / payment.										THIS APPLICATION IS SUBJECT TO THE TERMS AND CONDITIONS SET OUT OVERLEAF.			
										Authorized Signature(s) and Company Stamp			
										AML Hot List Checked By		Signature Verified By	

Terms and Conditions

1. This application is subject to the Uniform Customs and Practice for Documentary Credits ("**UCP**") (for a letter of credit transaction) or Uniform Rules for Collections (for a D/A and D/P transaction) of the International Chamber of Commerce to which the relevant transaction- is subject. This application is also subject to any agreement previously signed by the customer specified in this application (the "**Customer**") and delivered to China Construction Bank (Asia) Corporation Limited (the "**Bank**", which expression shall include its successors, assigns and transferees), including the General Agreement by Customer(s). In case of conflict, the terms of this application shall prevail to the extent of conflict.
2. In this application, "**Financing**" means:-
 - (a) in the case of an L/C transaction:-
 - (i) where the Bank is the nominated bank under the L/C, any negotiation, purchase and/or prepayment (as the case may be) provided by the Bank under the L/C;
 - (ii) where the Bank is not the nominated bank under the L/C, any advance provided by the Bank to the Customer under the L/C; or
 - (b) in the case of a D/A or D/P transaction or export invoice financing, any advance provided by the Bank to the Customer under such transaction, and the term "**finance**" shall be construed accordingly.
3. Unless otherwise agreed by the Bank in writing, any Financing provided by the Bank under the L/C or the D/A or D/P transaction or export invoice financing is with full recourse against the Customer notwithstanding that the UCP or other applicable rules may provide otherwise. The Customer shall repay the Bank on demand (without raising any defence or objection) any Financing obtained from the Bank together with interest (calculated from (and including) the date of Financing to (and including) the date of full repayment) at the interest rate stipulated in the relevant facility letter or any other agreement between the Bank and the Customer (if any) or otherwise determined by the Bank. Without limiting the generality of the above, the Customer undertakes to repay any Financing plus interest under the L/C on demand if the Bank, due to whatever reasons, does not receive full and punctual payment(s) under the L/C including, but not limited to, the occurrence of any of the following situations:-
 - (a) the issuing, confirming or nominated bank holds the view that the Documents are non-compliant notwithstanding the fact that the Bank may consider otherwise; or
 - (b) the issuing, confirming or nominated bank fails to honour its payment obligations under the L/C or reimburse the Bank on time due to insolvency, foreign exchange control, any court order, injunction, fraud or allegation of fraud, illegality, unauthorized act, commercial dispute or any other reasons.
4. If the amount (if any) actually received by the Bank under the L/C or the D/A or D/P transaction is insufficient for the discharge of the Financing plus any applicable interest and charges in full, the Customer shall immediately pay to the Bank any shortfall. Without prejudice to the generality of the foregoing, where the amount received under the L/C or the D/A or D/P transaction or this application is in the currency other than the currency of Financing, the Bank may convert the amount received into the currency of Financing at the spot rate of exchange determined by the Bank at the time of conversion, and the Customer shall indemnify the Bank against any shortfall if the converted amount is less than the Financing plus any applicable interest and charges.
5. The Customer may enter into a foreign exchange contract (whether deliverable or non-deliverable) or other derivative contracts with the Bank on terms satisfactory to the Bank for hedging purposes (collectively, "**hedging contracts**"). If any amount is payable by the Bank to the Customer in respect of any hedging contract entered into between the Bank and the Customer, the Bank may:-
 - (a) apply such amount towards the discharge of the Financing amount plus any applicable interest and charges; and/or
 - (b) without prejudicing other rights of the Bank, at any time set-off and apply such amount payable by the Bank against and/or towards the satisfaction of the Financing amount plus any applicable interest and charges without any notice or reference to the Customer.
6. The Customer shall pay all the fees and charges in connection with the transaction contemplated in this application. The Bank is hereby authorized to deduct or debit all relevant fees, charges and any amount owed by the Customer to the Bank from the proceeds received under the L/C or the D/A or D/P transaction, the Financing proceeds and/or any of the Customer's account(s) maintained with the Bank.
7. The Customer shall indemnify the Bank and the Bank's delegate(s) on demand (on a full indemnity basis) against all liabilities, losses, payments, damages, demands, claims, expenses and costs (including legal fees), proceedings, actions and other consequences which the Bank or the Bank's delegate(s) may suffer or incur under or in connection with this application and/or the provision of any Financing or services to the Customer (except caused by the Bank's gross negligence or wilful misconduct).
8. The Bank is irrevocably authorized (but is not obliged) to (a) utilize the presented documents under the Back-to-Back L/C for drawing of the L/C; (b) negotiate the Documents, prepay a deferred payment undertaking incurred by the Bank, purchase a draft accepted by the Bank under the L/C or make any advance to the Customer under the L/C; and (c) directly apply the Financing proceeds of, or the payment proceeds received under, the L/C to settle the corresponding drawing(s) under, and/or the Customer's obligations and liabilities owed to the Bank arising out of or in connection with, the Back-to-Back L/C without first crediting such proceeds to the Customer's account with the Bank, irrespective of discrepancies or irregularities that may appear on the documents presented under the Back-to-Back L/C (all of which, if any, are hereby waived).
9. As continuing security for the Customer's obligations and liabilities to the Bank, the Bank shall have and the Customer hereby grants (i) a pledge and lien over the Documents; and (ii) a pledge over the goods represented by the Documents insofar as such goods are in or come into the Bank's actual or constructive possession. The Bank has full authority (but no obligation) at the Bank's discretion to store and insure the pledged goods at the Customer's risk and cost. If the Customer fails to duly perform or discharge its obligations or liabilities to the Bank, the Bank is authorized to (at any time, without prior notice to or consent from the Customer or any other person and in such manner as the Bank thinks fit) sell, dispose of or otherwise deal with any of the Documents and the pledged goods. The Bank may apply the net proceeds of any sale, disposition or dealing of the Documents or the pledged goods in or towards the discharge of the Customer's obligations and liabilities to the Bank in such order and manner as the Bank may determine.
10. The Customer agrees that the Bank may carry out the processing work at offshore centres and/or outsource the processing work to offshore service agents (including offshore centres and/or service agents located in mainland China). The Bank is also authorized to share any information and/or data with such offshore centres and/or service agents in connection with the operation of the services provided to the Customer.
11. The Bank shall not be liable to the Customer for any action taken by it unless directly caused by the Bank's gross negligence or wilful misconduct. The Bank shall not be responsible or liable for any delay in remittance or loss in exchange during transmission or in the course of providing any services to the Customer. The Bank shall also not be responsible or liable for any act, omission, default, suspension, insolvency or bankruptcy of any correspondent, agent or sub-agent, nor shall the Bank be responsible or liable for loss or delay of any documents in transit or in the possession of any correspondent, agent or sub-agent notwithstanding that the Bank may choose such courier company, correspondent or agent.
12. If the Bank provides Financing under the L/C or the D/A or D/P transaction, (i) the Customer shall ensure that all monies payable under or in connection with the L/C or the D/A or D/P transaction are paid to the Bank for the discharge of the Customer's obligations and liabilities owed to the Bank and the Bank shall have the right to collect such monies and to apply them for the discharge of the Customer's obligations and liabilities; (ii) such rights of the Bank shall not prejudice the Bank's rights acquired through the Financing (whether pursuant to the UCP or general law); and (iii) the Customer shall co-operate fully with the Bank and render to the Bank all assistance it requires in the collection and enforcement of any payments under or in connection with the L/C or the D/A or D/P transaction, whether by legal proceedings or otherwise.
13. For each documents presentation to the Bank under an L/C which is not advised through the Bank, but is confirmed by the Bank ("**Unadvised Confirmed L/C**") or in relation to which the Bank has provided Financing ("**Unadvised Financed L/C**"), the Customer represents and warrants that the Customer has provided the Bank with all amendments related to the Unadvised Confirmed L/C or the Unadvised Financed L/C (as the case may be) and the Customer will indemnify the Bank on demand and keep the Bank indemnified against any and all losses, claims, damages, demands, costs and expenses arising out of or in connection with any amendment which is not provided to the Bank and/or the Unadvised Confirmed L/C or the Unadvised Financed L/C (as the case may be) not being authentic.
14. Each of the persons signing this application (in his own personal capacity and as an authorized representative of the Customer) warrants and represents to the Bank that all documents presented or to be presented for Financing or collection purpose relate to the sale of goods / service as described in those documents and the Customer has shipped or delivered the goods (or has performed the service) to the buyer and acknowledges that the Bank will rely on such warranty and representation when assessing this application. The Customer acknowledges that presentation of forged or fraudulent documents can render a person liable to prosecution.
15. The Customer certifies that no shipment or transaction involved in this application is in violation of any applicable sanction or embargo imposed by any law, executive order, regulation or directive of the Government and/or authorities of the United States of America, the United Nations, any international organization or any other relevant jurisdiction ("**Sanctions**"). Should any document presented involves any country, entity, vessel or individual listed in or otherwise subject to any Sanction, the Bank has the right to refuse to pay, handle or process the documents and the transaction contemplated in this application, and the Bank shall not be liable for any delay or failure to pay, process or return such documents or for any related disclosure of information.
16. Any and all payments by the Customer shall be made in full and free and clear of and without deduction for any present or future taxes, including but not limited to transaction taxes (including GST, VAT or other similar taxes), levies, imposts (stamp duties, documentary taxes and other excises or property taxes), deductions, charges or withholding taxes, and all liabilities with respect thereto. If the Customer is required by law to make any such deduction or withholding from any and all payments, then such sum payable by the Customer in respect of such deduction or withholding shall be increased to the extent necessary so that the amount due from the Customer is an amount equal to the payment which would have been due had no such deduction or withholding been made or required to be made. The Customer will indemnify the Bank for any of the aforementioned taxes, levies, imposts, deductions, charges or withholdings paid by the Bank.
17. If the Customer includes two or more persons, the obligations and liabilities of these persons under this application shall be joint and several.
18. This application shall be a request by the Customer to the Bank to provide such services (not limited to Financing). No commitment by the Bank to provide such services shall arise until and unless this application by the Customer is accepted by the Bank either expressly or by the Bank's providing such services to the Customer pursuant to this application.
19. This application is governed by and construed in accordance with the laws of the Hong Kong Special Administrative Region ("**Hong Kong**"), and the Customer agrees to submit to the non-exclusive jurisdiction of the Hong Kong courts.